

26CMCV00409 26CMCV00409

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-10

Motion: DEFENDANTS UBER, TECHNOLOGIES, INC.; RAISER, LLC; AND RASIER-CA, LLC'S MOTION TO COMPEL ARBITRATION

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Case Number: 26CMCV00409 Hearing Date: August 10, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

SABRINA CALEDERON,

Plaintiff,

vs.

XIAOFENG

XU, et al.,

Defendants.

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CASE NO: 26CMCV00409

[TENTATIVE]

ORDER RE: DEFENDANTS UBER, TECHNOLOGIES, INC.; RAISER, LLC; AND RASIER-CA,
LLC'S MOTION TO COMPEL ARBITRATION

Dept.

A

DATE:

August 10, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 03/02/2026

TRIAL:

04/02/2029

MOVING

PARTY: Defendants Uber

Technologies, Inc.; Rasier, LLC; and Raiser-CA, LLC

RESPONDING

PARTY: None

1.

Background

This is a motor vehicle collision action.

Plaintiff Sabrina Calderon alleges that on October 17, 2024, defendants Defendants Uber Technologies, Inc.; Rasier, LLC; Raiser-CA, LLC; Kazunori Miyahara; and Courtney Vaughn negligently and carelessly owned and operated their vehicles, causing Calderon personal injury and property damage.

2.

Discussion

Defendants Uber

Technologies, Inc. ("Uber"); Rasier, LLC; and Raiser-CA, LLC (collectively, "Movants") move to compel arbitration based on Calderon's creation of a user account and corresponding agreement to Uber's terms of service, which included an arbitration agreement. Calderon does not oppose the instant motion.

Under

California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (*Moncharsh v. Heily & Blasé* (1992) 3 Cal.4th 1, 8-9 (*Moncharsh*); *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.) Accordingly, whether an agreement is governed by the California Arbitration Act (CAA) or the Federal Arbitration Act (FAA), courts resolve doubt about an arbitration agreement's scope in favor of arbitration. (*Moncharsh*, *supra*, 3 Cal.4th at p. 9; *Comedy Club, Inc. v. Improv West Associates* (9th Cir. 2009) 553 F.3d 1277, 1284.) "[U]nder both the FAA and California law, 'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.'" (*Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1247.)

The

party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (*Engalla v. Permanente Medical Group* (1997) 15 Cal.4th 951, 972.) A petition to compel arbitration must allege both a “written agreement to arbitrate” the controversy, and that a party to that agreement “refuses to arbitrate” the controversy. (Code Civ. Proc. § 1281.2.) For this step, it is not necessary to follow the normal procedures of document authentication. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 (*Gamboa*).) The movant can bear their initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature, or by setting forth the agreement’s provisions in the motion. (*Ibid.*; *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*).) It then becomes the opposing party’s burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to their opposition. (*Engalla, supra*, 15 Cal.4th 951 at p. 972.)

“Code

of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration ‘if the court determines that an agreement to arbitrate the controversy exists.’” (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59 (*Avery*), quoting Code Civ. Proc. § 1281.2.) Accordingly, “when presented with a petition to compel arbitration, the court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.” (*Avery, supra*, at p. 59.) Generally, on a motion to compel arbitration, the court must grant the motion unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Ibid.*) “In these summary proceedings the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Ibid.*)

Movants have attached a

copy of Uber’s operative terms of service for the use of its app, including the arbitration agreement that Movants contend is applicable to the present case, as Exhibit G to the declaration of Jacqueline Pare, Lead Paralegal for Uber.

The operative arbitration agreement states that it applies to all claims between Calderon and Uber, as well as Uber's subsidiaries and affiliates, arising out of Calderon's use of Uber's rideshare services. Uber contends that the instant case concerns a motor vehicle accident in which Calderon was a passenger using Uber's rideshare services, and therefore the arbitration agreement is applicable. The complaint alleges that Defendant Xu was negligent in the course and scope of his employment with Uber, thereby violating his duty to reasonably and safely drive his passenger, Calderon. Rasier, LLC is a subsidiary of Uber, and Raiser-CA, LLC is a subsidiary of Rasier, LLC, such that they are included in Uber's arbitration agreement. (Pare Decl. ¶ 5.) The complaint therefore alleges that Calderon's claims against Movants arose out of her use of Uber's rideshare services.

Under Gamboa and Iyere, attaching a copy of the arbitration agreement to the motion constitutes setting forth the agreement's provisions in the motion, which is sufficient to fulfill Uber's initial burden of proving the existence of an arbitration agreement between the parties.

Furthermore, although Uber

did not need to do so, Uber has introduced evidence beyond what is required by Gamboa in order to authenticate the arbitration

agreement. Uber has presented the declaration of Jacqueline Pare, Uber's Lead Paralegal. (Pare Decl. ¶ 2.) Pare declares that she is familiar with Uber's record-keeping procedures as well as the Uber app and its terms of service agreement, including the arbitration agreement, and that she has reviewed Uber's business records in preparation for his declaration. (Pare Decl. ¶¶ 1, 3.)

Pare declares that, based

on Uber's business records, Calderon created an Uber user account on December 11, 2015 as part of which Calderon accepted the terms of service, including the arbitration agreement, and that Calderon also accepted the terms of service on four other occasions when it was updated. (Pare Decl. ¶¶ 9-17.) Pare provides the Uber business record of the time and date of Calderon's consents to the terms of service as Exhibit A to the declaration. (Pare Decl., Ex. A.) Pare also provides the operative Uber app terms of service, accepted by Calderon on January 22, 2023, as Exhibit G to the declaration. (Pare Decl. ¶ 17, Ex. G.) This is sufficient evidence to satisfy Uber's burden of showing that Calderon agreed to the terms of service and the arbitration agreement therein. The burden therefore shifts to Calderon to "identify a factual dispute as to the agreement's existence" or establish a defense of unconscionability. (Iyere, *supra*, 87

Cal.App.5th at p. 755.)

As Calderon has not
opposed the instant motion, Calderon fails to carry her burden.

The court finds that that
Calderon and Uber entered into a valid agreement to arbitrate disputes such as
the instant dispute and will grant Movants' motion to compel arbitration.

3.

Conclusion

Based
on the foregoing, the court GRANTS Movants' motion to compel arbitration.

The
court orders (1) plaintiff Sabrina Calderon and defendants Uber Technologies,
Inc.; Rasier, LLC; and Raiser-CA, LLC to arbitrate the claims alleged in plaintiff
Sabrina Calderon's Complaint, and (2) this action is stayed as to all
defendants until arbitration is completed.

The court sets a Status Conference Re: Arbitration
for hearing on March 9, 2027, at 8:30 a.m., in Department A.

Movants are ordered to give notice.

IT IS SO ORDERED.

DATED: August 10, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court